

SENATE BILL No. 123

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-34-3-28.

Synopsis: Student water safety. Requires public schools, including charter schools, to present an informational video on water safety to students enrolled in kindergarten through grade 12. Requires the department of education to approve an informational video on water safety for various grade levels.

Effective: July 1, 2026.

Spencer

December 9, 2025, read first time and referred to Committee on Education and Career Development.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 123

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-34-3-28 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 28. (a) Each public school, including a charter school,**
4 **shall present an informational video on water safety each school**
5 **year to students enrolled in kindergarten through grade 12.**

6 **(b) The department shall approve an informational video on**
7 **water safety for use by public schools, including charter schools,**
8 **under subsection (a) for each group of the following grade levels:**

9 **(1) Kindergarten through grade 6.**

10 **(2) Grades 7 and 8.**

11 **(3) Grades 9 through 12.**

12 **(c) Each informational video on water safety approved under**
13 **subsection (b):**

14 **(1) may be developed by a nonprofit organization or**
15 **individual with a commitment to water safety and swimming**
16 **instruction; and**

17 **(2) shall include instruction on the following topics:**



- 1 **(A) The flip, float, and follow method for water safety.**
- 2 **(B) Awareness of water conditions.**
- 3 **(C) Safe behaviors in and around the water.**
- 4 **(D) The importance of:**
- 5 **(i) pool barriers and fencing; and**
- 6 **(ii) formal swim lessons.**

